

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NIGEL CAMPBELL,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:

Location of Incident

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE DAVID DARCY, Shield No. 2921, NYPD
POLICE SERGEANT JONATHAN TAVERAS, SHIELD
No. 5450, and NYPD POLICE OFFICERS JOHN AND
JANE DOES,

Plaintiff designates KINGS
County as the place of trial.

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 2, 2023

Respectfully submitted,



Caitlin Robin, Esq.
CAITLIN ROBIN & ASSOCIATES, PLLC
Attorneys for the Plaintiff
NIGEL CAMPBELL
30 Broad Street, Suite 702
New York, New York 10004

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, NY
10007

NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, 1 Police Plaza, New
York, NY 10038

NYPD POLICE SERGEANT JONATHAN TAVERAS, Shield No. 5450, 1 Police Plaza,
New York, NY 10038

NYPD POLICE OFFICERS JOHN AND JANE DOES, 1 Police Plaza, New York, NY
10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NIGEL CAMPBELL,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE DAVID DARCY, Shield No. 2921, NYPD
POLICE SERGEANT JONATHAN TAVERAS, SHIELD
No. 5450, and NYPD POLICE OFFICERS JOHN AND
JANE DOES,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff NIGEL CAMPBELL, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 27, 2022, in the vicinity of claimant's home, located at 88 Lott Street, County of Kings, State of New York, Plaintiff NIGEL CAMPBELL was subject to an unlawful stop, frisk, search, use of excessive force, detention, and false imprisonment by Defendants NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, and NYPD POLICE SERGEANT JONATHAN TAVERAS, SHIELD No. 5450. Plaintiff spent approximately forty-eight hours unlawfully in police custody at the 67th Precinct. Thereafter, Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, denied Plaintiff the right of fair trial by forwarding false information to the Kings County District Attorney's Office. All charges against Plaintiff were dismissed and sealed on or around April 19, 2023. Plaintiff was deprived of his constitutional rights when the Defendant unlawfully stopped, questioned, frisked, searched, subjected to excessive force, unlawfully arrested, falsely imprisoned, and denied the plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff NIGEL CAMPBELL is a resident of the state of New York.
3. NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, is and was at all times relevant herein, an officer of the New York City Police Department.
4. On the date of the subject incident, NYPD POLICE OFFICER DAVID DARCY, Shield No. 2921, was at all times relevant herein, assigned to the 318 Command of the New York City Police Department (NYPD).
5. NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, is being sued in his individual and official capacity.
6. NYPD POLICE SERGEANT JONATHAN TAVERAS, SHIELD No. 5450, is and was at all times relevant herein, an officer of the New York City Police Department.
7. On the date of the subject incident, NYPD POLICE SERGEANT JONATHAN TAVERAS, SHIELD No. 5450, was at all times relevant herein, assigned to the 318 Command of the New York City Police Department (NYPD).
8. NYPD POLICE SERGEANT JONATHAN TAVERAS, SHIELD No. 5450, is being sued in his individual and official capacity.
9. NYPD POLICE OFFICERS JOHN AND JANE DOES are and were at all times relevant herein, officers of the New York City Police Department.
10. NYPD POLICE OFFICERS JOHN AND JANE DOES are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties and officers, employees, and agents of the New York City Police Department.

12. At all times relevant hereto, Defendant CITY OF NEW YORK, operated, maintained, managed, supervised, and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of the police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On July 27, 2022, at approximately 1:15 P.M., Plaintiff NIGEL CAMPBELL was lawfully present outside of his own home, located at 88 Lott Street, Brooklyn, State of New York.

16. On July 27, 2022, Defendants NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, and NYPD POLICE SERGEANT JONATHAN TAVERAS, SHIELD No. 5450, acting in concert with Defendants NYPD POLICE OFFICERS JOHN AND JANE DOES, grabbed Plaintiff and restrained him with metal handcuffs, arresting him without probable cause.

17. At no time prior to being stopped by the officers did Plaintiff commit a crime or behave in a manner that gave the Defendants a reasonable and objective basis to believe he had committed or was committing a crime.

18. At no point in time did the Defendants find any contraband on Plaintiff’s person.

19. At no point did Plaintiff resist arrest in any way.

20. Defendant officers then transported Plaintiff to the 67th precinct, where they fingerprinted, photographed, searched, and placed Plaintiff in a holding cell.

21. Plaintiff was interrogated by Defendant officers about an alleged weapon they found inside a cinder block near Plaintiff’s home.

22. Plaintiff denied any knowledge of this and volunteered his DNA to be tested to prove his innocence.

23. Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, knowingly and falsely stated to the Kings County District Attorney's Office that the Plaintiff had committed the crimes of Criminal Possession Of A Weapon in the Second Degree, Criminal Possession of a Firearm, Criminal Possession of a Weapon in the Fourth Degree, and Possession of Pistol Ammunition, despite knowing that he lacked a legal and factual basis to allege that Plaintiff committed any such crimes.

24. After approximately forty-eight (48) hours in police custody, Plaintiff was released on his own recognizance.

25. Thereafter, the criminal charges against Plaintiff were dismissed and sealed on April 19, 2023.

26. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against Plaintiff by the individually named Defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.

28. Defendants owed a duty of care to plaintiff.

29. As a direct and proximate cause of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

30. All of the foregoing occurred without any fault or provocation by Plaintiff.

31. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

32. The City of New York, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

33. As a direct and proximate result of the aforementioned conduct of Defendants,

Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question and Frisk

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

35. The illegal approach, pursuit, stop, questioning, and frisk employed by Defendants herein terminated the plaintiff's freedom of movement through means intentionally applied.

36. The conduct of Defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

37. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City of New York, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

40. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION
Unlawful Search

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

42. The illegal approach, pursuit, stop, and search of Plaintiff's person employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

43. Defendants lacked probable cause to search Plaintiff.

44. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City of New York, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION
False Arrest and False Imprisonment

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff, and in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, the Plaintiff did not consent to the confinement and confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City of New York, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Denial of Right to Fair Trial/Due Process

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

55. Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors of the Kings County District Attorney's Office.

56. Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

57. Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

59. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

60. Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, was at all times agent, servant, and employee acting within the scope of his employment by the

City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City of New York, as the employer of the Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921,, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a direct and proximate result the conduct of Defendant NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921,, Plaintiff suffered injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City of New York, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

71. By the actions described herein, Defendants, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City of New York, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

77. The City of New York and its employees, servants and/or agents acting within

the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

78. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

JURY DEMAND

79. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff NIGEL CAMPBELL demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 2, 2023



Caitlin Robin, Esq.
CAITLIN ROBIN & ASSOCIATES, PLLC
Attorneys for the Plaintiff
NIGEL CAMPBELL
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(646) 524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, NY
10007

NYPD POLICE DETECTIVE DAVID DARCY, Shield No. 2921, 1 Police Plaza, New
York, NY 10038

NYPD POLICE SERGEANT JONATHAN TAVERAS, Shield No. 5450, 1 Police Plaza,
New York, NY 10038

NYPD POLICE OFFICERS JOHN AND JANE DOES, 1 Police Plaza, New York, NY
10038

ATTORNEY'S VERIFICATION

Caitlin Robin, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 2, 2023



Caitlin Robin, Esq.